

Court No. - 32

Case :- WRIT - C No. - 38454 of 2019

Petitioner :- Sandeep Kumar Prajapati

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Deepak Singh Patel

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Shashi Kant Gupta,J.

Hon'ble Neeraj Tiwari,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(i) Issue a writ, order or direction in the nature of mandamus directing the respondent No. 3 to give the correct electric bill to the petitioner so the petitioner deposit before electric department.

(ii) Issue a writ, order or direction in the nature of mandamus directing the respondent No. 3 to decide the application of petitioner dated 20.10.2019 within stipulated period which is pending before the respondent No. 3 (Annexure No. 4 to this writ petition)

Heard learned counsel for the petitioner, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within 10 days from today, his application may be considered and decided by the said authority in accordance with law within 30 days from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of 40 days, no coercive action shall be taken against the petitioner.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 26.11.2019

Rmk.